MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS

Approved as 10/16/2024

225 W. Main St.
Harrison, Michigan 48625

Unapproved minutes
September 18, 2024

Meeting was called to order at 9:00 a.m.

Pledge of Allegiance to the Flag of the United States of America

District 1 Marlene Housler, District 2 Dale Majewski, District 3 Samantha Pitchford, District 4 Jeff Haskell, District 5 David Hoefling, District 6 Jack Kleinhardt, District 7 Gabe Ambrozaitis, District 8 George Gilmore and District 9 Rick Fancon

COMMISSIONERS ABSENT

None .

OTHERS PRESENT

Clerk & Register of Deeds Lori Mott, Administrator Lori Phelps and members of the public

APPROVAL OF AGENDA

It was moved by Commissioner Majewski, seconded by Commissioner Hoefling to approve the agenda with additions, **motion carried**

*Additions:
Under Physical Resources
Motion: To approve Lisa Gram, Villag of Farwell Deputy Clerk/Treasurer, to serve on the Clare County Land Bank Authority Board for a term of three years ending September 30, 2027.

APPROVAL OF MINUTES

It was moved by Commissioner Hoefling, seconded by Commissioner Housler to approve the Board of Commissioners Minutes of August 21, 2024, Committee of the Whole Minutes of September 4, 2024, and Closed Session Minutes of September 4, 2024, **motion carried**.

GENERAL PUBLIC COMMENT

Dewayne Rogers the Clare County Road Commission Manager addressed the Board of Commissioners indicating that he will be seeking approval at the October Board of Commissioners meeting to move forward with a Municipal Bond for Road Commission in 2025.

Several other members of the public commented regarding the ambulance service crisis and lack of preparedness of other first responders within the county, which they believe have resulted in the death of members of our community.

COMMUNICATIONS LIST

None

ADMINISTRATOR'S REPORT

Administrator Lori Phelps confirmed that health insurance open enrollment has been completed and 35 employees opted out of health insurance. She reported that the projected revenue sharing in 2025 will be $859,548.00. Administrator Phelps reported that the meeting dates are set and draft bylaws ready for the new materials management committee and that there will possibly be $400,000.00 left after expenditures from the 2024 budget to be added to the fund balance.

PUBLIC HEARINGS/SPECIAL PRESENTATIONS

1. Community Mental Health
   Sara Miceli-Sorensen and Bryan Krogman presented the Community Mental Health 2023 Annual Report. Ms. Miceli-Sorensen shared several success stories with the Commissioners.

2. 2025 Budget Review
   Administrator Phelps reviewed the 2025 Budget with the Commissioners pointing out different capital outlay needs such as fixing sidewalks, upgrade of fire suppression panel and replace rotting windows.

   Administrator Phelps then reviewed the expected revenues and confirmed that she estimated revenues conservatively.

It was moved by Commissioner Majewski, seconded by Commissioner Hoefling to go into closed session under section 8(e) of the Open Meetings Act to consult with an attorney regarding pending arbitration, roll call vote revealed:

Yeas: (9) being Commissioners Majewski, Hoefling, Housler, Pitchford, Ambrozaitis, Gilmore, Kleinhardt, Fancon and Haskell
Nays: (0)
Absent: (0)
Motion carried

Entered into closed session at 10:11 a.m.
Back in open session at 10:45 a.m.

It was moved by Commissioner Majewski, seconded by Commissioner Hoefling to approve the settlement and proceed as recommended by council in closed session of September 18, 2024, roll call vote revealed:

Yeas: (9) being Commissioners Majewski, Hoefling, Housler, Pitchford, Ambrozaitis, Gilmore, Kleinhardt, Fancon and Haskell
Nays: (0)
Absent: (0)
Motion carried

JUSTICE

1. Jail Contract
   It was moved by Commissioner Housler, seconded by Commissioner Ambrozaitis to accept and sign the contract between Grand Traverse County and Clare County for the housing of Grand Traverse prisoners in Clare County Jail, roll call vote revealed:

   Yeas: (9) being Commissioners Housler, Ambrozaitis, Gilmore, Fancon, Pitchford, Kleinhardt, Hoefling, Majewski and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

PHYSICAL RESOURCES AND ECONOMIC DEVELOPMENT

1. Materials Management
   It was moved by Commissioner Hoefling, seconded by Commissioner Housler to approve Resolution #24-16 entering into an Agreement to establish and manage a Multi-County Materials Management Plan, roll call vote revealed:

   Yeas: (9) being Commissioners Hoefling, Housler, Ambrozaitis, Gilmore, Fancon, Pitchford, Kleinhardt, Majewski and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

2. Spongy Moth
   It was moved by Commissioner Pitchford, seconded by Commissioner Majewski to decrease the amount of tax dollars assessed in the 2024 Winter Taxes for Spongy Moth from 0.9884 of 1 mill to .60000, roll call vote revealed:

   Yeas: (9) being Commissioners Pitchford, Majewski, Housler, Ambrozaitis, Gilmore, Fancon, Kleinhardt, Hoefling and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

3. Land Bank Authority
   It was moved by Commissioner Majewski, seconded by Commissioner Ambrozaitis to approve Lisa Gram, Village of Farwell Deputy Clerk/Treasurer, to serve on the Clare County Land Bank Authority Board for a term of three years ending September 30, 2027, **motion carried**.

FINANCE AND ADMINISTRATION

1. Statutory Finance Committee
   It was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to approve Statutory Finance Committee meeting minutes of August 19, 2024 in the amount of $84,127.38 and the meeting minutes of September 3, 2024 in the amount of $85,751.86, roll call vote revealed:

   Yeas: (9) being Commissioners Ambrozaitis, Hoefling, Housler, Gilmore, Fancon, Pitchford, Kleinhardt, Majewski and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

2. Monthly Expenditures
   It was moved by Commissioner Gilmore, seconded by Commissioner Housler to approve the expenditures for the month of August 2024 in the amount of $2,720.082.47 with the General Fund expenditures totaling $954,622.37, roll call vote revealed:

   Yeas: (9) being Commissioners Gilmore, Housler, Ambrozaitis, Fancon, Pitchford, Kleinhardt, Hoefling, Majewski and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

FINANCE AND ADMINISTRATION - continuation

3. Budget Adjustments
   It was moved by Commissioner Kleinhardt, seconded by Commissioner Ambrozaitis to approve budget adjustments #24-143 and #24-156 in the amounts of $90,000.00 and $103,345.00 respectively, roll call vote revealed:

   Yeas: (9) being Commissioners Kleinhardt, Ambrozaitis, Housler, Gilmore, Fancon, Pitchford, Hoefling, Majewski and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

4. Clerk
   a. It was moved by Commissioner Gilmore, seconded by Commissioner Hoefling to approve the Remonumentation Contract between Clare County Board of Commissioners and Lapham Associates in the amount not to exceed $35,532.00, roll call vote revealed:

      Yeas: (9) being Commissioners Gilmore, Hoefling, Housler, Ambrozaitis, Fancon, Pitchford, Kleinhardt, Majewski and Haskell
      Nays: (0)
      Absent: (0)
      Motion carrried

   b. It was moved by Commissioner Housler, seconded by Commissioner Hoefling to approve a stipend of $9,000.00 per election for the Clare County Clerk and a stipend of $5,000.00 per election for the Chief Deputy Clerk/Register.

      Prior to moving directly to a vote, Clerk Mott asked to speak. With permission form Chairman Haskell, Clerk Mott wanted everyone to fully understand that if they voted no on the stipend, she would be handing the programming off to the vendor ElectionSource. Chairman Haskell asked Clerk Mott to hold off on this request until the Commissioners could do a wage study and look into the issue deeper. Clerk Mott reminded the Commissioners that she presented this request to them four weeks prior, followed up two weeks later to see if anyone had questions, sent an email another week later to see if anyone wanted to meet or talk, providing the Commissioners with her cell phone and office phone numbers. Clerk Mott also confirmed that she had provided a quote from the vendor for programming, details on each of the 3 elections for 2024 as a cost comparison and an attorney's opinion from the County Attorney stating the stipend was allowed.

      Commissioner Gilmore questioned if the County Clerk's Office has always programmed the election. Clerk Mott indicated that the County Clerk's Office has always programmed the election, but with the increased workload surrounding elections and increased non-statutory duties, the County Clerk would like to be compensated for the additional workload and that could be achieved by a stipend for programming.

      Commissioner Fancon questioned why the County is handling early voting for the townships/cities if the State is reimbursing for early voting. Clerk Mott explained that it is more than a financial issue, it also includes the hardship of finding election inspectors for 9-days of early voting and the extensive additional time involved in executing early voting.

FINANCE AND ADMINISTRATION - continuation

4. Clerk – Item b - continued

Chairman Haskell asked Clerk Mott for time to look into the issue further. Clerk Mott asked the Commissioners to meet halfway and to pay a stipend for the November 2024 Election and spend 2025 looking into the issue and preparing the wage study with no response. Roll call vote revealed:

Yeas: (2) being Commissioners Ambrozaitis and Hoefling
Nays: (7) Housler, Gilmore, Fancon, Pitchford, Kleinhardt, Majewski and Haskell
Absent: (0)
Motion failed

Administrator Phelps suggested that the Board of Commissioners use the negotiating committee to look into the stipend. Commissioner Haskell agreed and appointed Commissioner Hoefling to also be on that committee.

CLERK/REGISTER OF DEEDS REPORT

Clerk and Register of Deeds Lori Mott gave an update regarding the replacement of election tabulators that will take place in December of 2024 except for the one township that insisted on receiving the tabulators prior to the November General Election.

TREASURER'S REPORT

Treasurer Jenny Beemer-Fritzinger provided all the statutory reports to the Commissioners and reviewed, in detail, the annual foreclosure report. Treasurer Beemer-Fritzinger confirmed that September 26, 2024 is the second online tax foreclosure auction.

CHAIRMAN'S REPORT

Chairman Jeff Haskell had no report

VICE CHAIRMAN'S REPORT

Vice Chairman Dale Majewski indicated that the septic system inspections are still in Senate Committee.

COMMISSIONER'S REPORT

Commissioner Housler has attended her meetings and offered no report

Commissioner Hoefling has attended his meetings and reported on each of the multiple committees and townships he represents.

Commissioner Pitchford has attended her meetings and offered no report

Commissioner Ambrozaitis reported the date and time of the next Airport Committee Meeting.

Commissioner Gilmore reported that he is attending his meetings and offered no report.

Commissioner Kleinhardt reported on solar cells in Arthur Township.

Commissioner Fancon had no report.

STATE OF THE COUNTY BUDGET

No further discussion

PUBLIC COMMENT

There were comments in regard to the taxpayer's dissatisfaction and perceived fiscal irresponsibility by the Count Commissioners in regard to sending Clare County tax dollars out of county at more than double the rate of what it would cost to have the County Clerk continue to perform the same duty.

A Clare County employee commented regarding her observation that most of the County Commissioners don't care about the employees and make decisions that reflect that attitude.

A different Clare County employee commented that if one life is saved by a helicopter landing at the County Airport that it is worth the requested $20,000.00 allocation to the Airport Fund in the 2025 Budget.

UNFINISHED BUSINESS

None

NEW BUSINESS

None

Meeting Adjourned at 11:48 a.m.

Lori Mott, Clerk
Clare County Board of Commissioners

Jeff Haskell, Chairman
Clare County Board of Commissioners